

Naim Akhtar Khan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 August 2022 · WRIT - C No. 20429 of 2022 · **Writ dismissed; two-instalment facility under clause 6.14 upheld.**

HEADNOTE

Where the distribution licensee has already granted payment of electricity dues in two instalments under clause 6.14 of the U.P. Electricity Supply Code, 2005, the High Court will not interfere under Article 226 in the absence of a manifest error of law. A further prayer for easy instalments is refused and the writ petition is dismissed.

FACTUAL SUMMARY

The petitioner, Naim Akhtar Khan, filed a writ petition in the Allahabad High Court seeking certiorari to quash an order dated 28 January 2022 of respondent no. 3, the distribution licensee, and a mandamus directing that respondent to consider his request to deposit outstanding electricity dues in easy instalments. Counsel for the State and for the licensee were heard. The Court perused the impugned order, which had already allowed the petitioner to pay the dues in two instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity dues

HOLDING

An order granting payment of electricity dues in two instalments under clause 6.14 of the U.P. Electricity Supply Code, 2005, does not suffer from a manifest error of law and is not open to interference under Article 226 of the Constitution. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

The Court treated the licensee's grant of two instalments under clause 6.14 as a lawful exercise of the instalment facility and refused to quash that order or to direct a more generous instalment scheme. ¶ 1